

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

This matter is on calendar for hearing on Plaintiff's Motion to Compel Deposition of Custodian of Records of Defendant Redding Senior Living LLC dba Hilltop Springs Senior Living. On July 24, 2026, Plaintiff continued hearing on this Motion to Monday, August 24, 2026 at 8:30 a.m. No appearances are necessary on today's calendar.

LAWRENCE VS. KIA AMERICA, INC.

CASE NUMBER: 25CV-0208692

An Order to Show Cause Re: Sanctions ("OSC") issued on June 25, 2026, to Plaintiff and counsel for failure to file a Mandatory Settlement Conference Statement in violation of CRC 3.1380, and failure to appear at the June 15, 2026 Mandatory Settlement Conference. A late response to the OSC has been filed providing a satisfactory explanation for the failure to file a mandatory statement and attend the mandatory settlement conference. The OSC is **DISCHARGED**.

Based on the information provided in Counsel's declaration regarding the OSC, the court has executed the proposed order continuing the jury trial scheduled for August 11, 2026. A mandatory settlement conference is scheduled for **Monday, November 9, 2026 at 1:30 p.m.** and a jury trial is scheduled for **Tuesday, December 8, 2026 at 8:45 a.m.** Plaintiff is to give notice. No appearances are necessary on today's calendar.

IN RE: LEACHMAN

CASE NUMBER: 26CV-0210797

Tentative Ruling on Petition for Change of Name: Petitioner Kayden Lee-Adean Leachman seeks to change his name to Kayden Dean Wampler. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

IN RE: MCCORMICK

CASE NUMBER: 26CV-0210703

Tentative Ruling on Petition for Change of Name: Petitioner Jessican McCormick seeks to change the last name of her minor daughter from Bryd to McCormick. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

PERRY VS. ADVANCED CRISIS SOLUTIONS, INC.

CASE NUMBER: 24CV-0205612

Tentative Ruling on Motions to Compel Depositions: Plaintiff moves pursuant to CCP § 2025.450 for an order compelling the depositions of Defendant Advanced Crisis Solutions, Inc. employees Bailey Tompkins, Kimberly Congdon, and David Lopez. Sanctions of \$2,250.00 are requested in the motion regarding Lopez only. The Motions are properly noticed and are unopposed.

CCP 2025.450(a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410,

fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Here, Plaintiff has established service of a deposition notice as to Tompkins, Congdon, and Lopez, respectively. No valid objections under Section 2025.410 were served. Plaintiff has also provided evidence that on the noticed dates for each deposition, which were June 29, July 1, and July 3, 2026, Plaintiff's counsel and a court reporter appeared on zoom for the depositions. Neither defense counsel nor any deponent appeared. Plaintiff is entitled to an order compelling each of the three deponents' attendance and testimony.

Sanctions. Sanctions are mandatory under CCP 2025.450(g)(1). A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiff requests sanctions of \$2,250.00 on the Motion to Compel the Appearance of David Lopez for Deposition. This consists of 5 attorney hours at a rate of \$450.00. This hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. Total sanctions are \$1,200.00.

Each of the three Motions to Compel Appearance for Deposition of Bailey Tompkins, Kimberly Congdon, and David Lopez are **GRANTED**. Sanctions of \$1,200.00 are imposed in favor of Plaintiff Perry against Advanced Crisis Solutions, Inc. No proposed orders were lodged as required by Local Rule 5.17(D). Plaintiff is directed to prepare the orders.

PERRY VS. ADVANCED CRISIS SOLUTIONS, INC.

CASE NUMBER: 24CV-0205612

Tentative Ruling on Motion to Compel Further Responses to Special Interrogatories: Plaintiff seeks further responses to Special Interrogatories, Set Two. The motion is properly noticed and unopposed.

Meet and Confer: Pursuant to Ca. Code of Civ. Pro. section 2030.300(b) a motion to compel further responses must be accompanied by a meet and confer declaration. The Declaration of Noriya Bragg establishes compliance with this requirement.

Merits: The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to the relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A party propounding interrogatories may move for further responses if the responses are evasive/incomplete or contain unmeritorious objections. CCP § 2030.300(a)(1) & (3).

The interrogatories at issue, numbers 27 and 28, seek the identities of current and former employees who, within the preceding six years, complained of sex or gender-based mistreatment to Plaintiff's supervisor, Kimberly Congdon, or to Ryan Tucker, the decision-maker involved in